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KCFB
KINGS COUNTY FARM BUREAU

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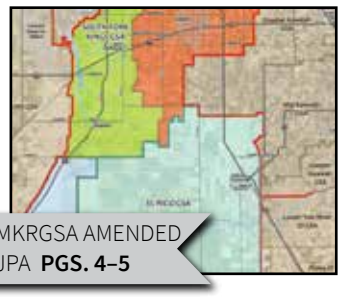

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A Newly formed Mid-Kings River Groundwater Sustainability Agency

By Dusty Ference

On Monday, July 29, 2024, the Mid-Kings River GSA held a special board meeting to wrap up the GSA's official business before the Kings County Water District's last day as a member agency. At the same time, the County of Kings and City of Hanford held a joint special meeting, at which they approved a restated joint powers agreement (JPA), ensuring that the Mid-Kings River GSA will continue to function without the Kings County Water District's involvement and appointed new directors to serve on the board. KCFB appreciates both agencies working together and safeguarding the Tulare Lake Sub-basin (TLSB) from having an unmanaged zone under the Sustainable Groundwater Management Act (SGMA). Additionally, KCFB has concerns with the adopted JPA.

As written, the current JPA consists of a six-member board of directors. Five seats are filled by the Kings County Supervisors, and the sixth is reserved for a representative from the City of Hanford. Even-numbered boards, particularly boards of public agencies, are unorthodox at best and problematic the rest of the time. The concern comes from the likelihood of a tie vote without an odd number of directors. At this time, the restated JPA is the sole governing document for the organization. The JPA does not explain how the MKRGSA will decide in the event of a tie vote.

Also missing from the restated JPA is any requirement for the MKRGSA to form stakeholder advisory committees. Supervisors Doug Verboon and Rusty Robinson voiced their desire for decisions to be "made by the community" through a public process that the directors will consider before adopting policy. However, KCFB is concerned that this is not enough. Without stakeholder positions on the board, there is no way to guarantee agriculture's voice is heard while making decisions directly affecting farms and ranches.

During the meeting, the MKRGSA board of directors appointed the Community Development Agency Director as the MKRGSA's General Manager and the County Council as the GSA's legal counsel. These decisions offer much-needed resources to the MKRGSA concerns, except that sharing staff between the two agencies may have created a conflict of interest.

KCFB will continue to monitor the MKRGSA's activities and report on those actions to our membership. However, now more than ever, we cannot stress enough the importance of your participation in your GSA(s). Your involvement is crucial and valued. KCFB will continue to advocate on your behalf with local GSAs, but your voice is more impactful. The Mid-Kings River GSA's next board meeting is scheduled for August 20, 2024, at 1:30 pm at the County Board of Supervisors Chambers, 1400 W. Lacey Boulevard, Hanford. The MKRGSA restated joint powers agreement can be found later in this issue and we will continue to publish all GSA meeting dates and locations for the Tulare Lake Sub-basin.

FULL JPA DOCUMENT on page 4–5

Heat Illness Prevention in Indoor Workplaces Information for Employers

Information Provided by CalOSHA

California Code of Regulations, title 8, section 3396 establishes required safety measures for indoor places of employment to prevent employee exposure to risk of heat illness. The standard applies to most workplaces where the indoor temperature reaches 82°F. This regulation requires employers to provide access to drinking water and cool-down areas, closely observe employees during acclimatization, train employees, and provide timely emergency aid.

This fact sheet provides an overview—not all the requirements—of section 3396. Please read the regulation for full requirements.

Why should employers be concerned about indoor heat illness prevention?

Many employees in indoor settings such as factories, food trucks, kitchens, warehouses, and foundries work in hot environments and are often unable to take advantage of heat illness prevention policies that apply to their counterparts working in outdoor places of employment.

Heat illness is a serious medical condition resulting from the

"Heat Illness" continued on page 14

KCFB
KINGS COUNTY FARM BUREAU

Purpose
Protect, preserve and enhance agriculture in Kings County

Vision
Ensure that every farmer has the right to farm and protect their heritage

Values
Our Members | Proactive Representative
Reliable | Trusted Resource

Officers
President: Shane Bickner
Vice President: Garrett Gilcrease
Secretary/Treasurer: Chad Souza

Directors
John Ellis, Dino Giacomazzi, Keith Grabow, Pete Hanse, Monty Hoggard, David Kahn, Julie Martella, Brian Medeiros, Michael Miya, Brian Potter, Kevin Robertson, Brandon Sargent, Helen Sullivan, Frank Zonneveld

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KCFB is the leading advocate for Kings County agriculture.

By Dusty Ference, Executive Director

Dusty Ference

Earlier this year, KCFB's board of directors recognized the need to evaluate current membership dues, operational expenses, future needs, and the value KCFB provides to Kings County agriculture. After careful consideration, the board increased membership dues to $500 annually. Recognizing the significant increase and understanding it may be uncomfortable to renew, we believe this amount more closely matches the value of membership.

By participating in Groundwater Sustainability Agency board and committee meetings, the County Board of Supervisors Meetings, and state regulatory agencies, KCFB is your leading source of information and advocacy on groundwater issues. Our work is instrumental in ensuring the voice of agriculture, including farmers and ranchers, is heard in rooms where decisions are made, often by individuals without hands-on experience in the field. Your involvement empowers us to make a difference.

Representing all agriculture sectors, KCFB is a diverse community with a broad perspective across the industry. This diversity equips us with a well-rounded approach to advocating for agriculture. Serving such a diverse group ensures that every member is included and their needs are considered.

Advocating requires guts and commitment to a cause. KCFB's fortitude while advocating for better conditions under SGMA is unparalleled. In January, KCFB's board of directors made SGMA advocacy the organization's first and most important goal. We have kept that goal front of mind all year as we've advocated for better performance from the Mid-Kings River GSA and challenged the State Water Resources Control Board's decision to place the Tulare Lake Sub-basin on probation.

KCFB's volunteer leadership and staff work tirelessly to ensure every member's right to farm and protect their heritage. Without members, KCFB does not exist, and more importantly, without agriculture, every corner of society suffers. We appreciate your membership and support and look forward to improving our industry and community.

WE'RE HIRING!

Title: **On Farm Conservation Planner** **Status:** **Non-Exempt Full-Time**
Salary Range: **$18-$24/Hr D.O.E** **Reports to:** **Executive Director/CEO**

Summary: The Kings County Farm Bureau manages the Excelsior-Kings River Resource Conservation District (EKRCD). This position will provide technical input, project management, and/or project coordination for current and future grant programs. Project management tasks will include developing project work plans and conducting promotional outreach to growers. Site visits and fieldwork will be required for some projects.

Duties include but are not limited to:
- Engaging with growers and service providers
- Assisting growers to complete applications and project intake forms
- Track and maintain project compliance
- Prepare, report, and present grant activity to Board of Directors
- Draft agendas and minutes of meetings
- Managing CRM database
- Other duties as assigned

Required skills and Abilities:
- High School Diploma
- Proficient with Microsoft Office Suite (Word, Excel, PowerPoint).
- Strong written and verbal communication
- Strong time management
- Good interpersonal skills and ability to work collaboratively with team members, Executive Director, Board Members, and service providers
- Drive a vehicle with a valid Class C CA Driver's License, including valid proof of vehicle insurance
- Must be able to lift up to 50 lbs

Preferred Experience:
- Possess an Ag Irrigation Technician Certificate or equivalent work experience with water management, irrigation system design, pumps and irrigation systems maintenance
- Cloud-based CRM platforms such as Salesforce and Asana
- Microsoft PowerPoint
- Bilingual

Working Conditions:
Primarily an office environment; exposure to computer screens. Fieldwork is required.

To apply for this position, please send a resume to kcfb@kcfb.org.

Please visit kcfb.org to stay up to date on GSA meetings and Sub-basin news

SGMA **Defense Fund**

INVEST TODAY

Help us fight for you!

KCFB believes the State Water Resource Control Board (SWRCB) has violated the law and your constitutional rights by placing the Tulare Lake Sub-basin on probation. Challenging the SWRCB is a monumental task, but we CAN win. For the Sub-basin to succeed, we must raise at least $400,000 to fight the battle of undoing the probationary status. KCFB created the SGMA Legal Defense Fund to steward contributions for the effort. Kings County needs YOUR support in this momentous endeavor.

Contact KCFB by phone at **559-584-3557**, via email at **kcfb@kcfb.org**, or visit the KCFB website for more information.

How you can help:

$8 per acre: Growers in the Tulare Sub-basin
$4 per acre: GSA Organizations
$4 per acre: Growers outside the Tulare Sub-basin

Business Support Levels:
$2,500 • $5,000 • $10,000

Your entire annual donation will go toward improving SGMA in the Tulare Lake Sub-basin. KCFB will not financially benefit from this donation.

This is your money, fighting for your right to farm!

Please make checks payable to Kings County Farm Bureau and include SGMA Defense Fund on the memo line.

MID KINGS RIVER GMA

AMENDED AND RESTATED AGREEMENT FOR THE GOVERNANCE OF THE JOINT POWERS AUTHORITY KNOWN AS THE MID-KINGS RIVER GROUNDWATER SUSTAINABILITY AGENCY

THIS AMENDED AND RESTATED AGREEMENT FOR THE GOVERNANCE OF THE JOINT POWERS AUTHORITY KNOWN AS THE MID-KINGS RIVER GROUNDWATER SUSTAINABILITY AGENCY ("Agreement") is made effective July 29, 2024 ("Effective Date") by action of the Mid-Kings River Groundwater Sustainability Agency Board with the agreement of its member agencies the COUNTY OF KINGS, a political subdivision of the State of California ("County"), as defined by California Government Code Section 23000 et seq., and the CITY OF HANFORD ("City"), a California general law city as defined by California Government Code Section 34102 (hereinafter referred to individually as "Member" and collectively as "Members"),. to amend and restate the JPA Agreement dated November 22, 2016 forming the Mid-Kings River Groundwater Sustainability Agency ("Original Agreement").

RECITALS:

A. In September 2014, the Governor signed three bills (SB 1168, SB 1319, and AB 1739) into law creating the Sustainable Groundwater Management Act ("SGMA"). SGMA was amended in September and October 2015 when the Governor signed SB 13 and AB 617, respectively; and

B. SGMA authorizes the formation of entities called Groundwater Sustainability Agencies ("GSA"), one or more of which are authorized to implement provisions of SGMA as to each groundwater basin and subbasin falling within the provisions of SGMA; and

C. The Members overlie the Tulare Lake Subbasin (5-22.12 of the Department of Water Resources Bulletin 118 classifications) ("Subbasin") of the San Joaquin Valley Basin ("Basin"), an unadjudicated groundwater basin, portions of which underlie the jurisdictional boundaries of each Member; and

D. Each of the Members is a local government entity with water supply, water management, and/or land use responsibilities within the Subbasin and is qualified individually to serve as a GSA under the provisions of SGMA;and

E. Under SGMA, a combination of local agencies may elect to form a GSA through a joint powers; and

F. On November 22, 2016 the Kings County Water District, the County of Kings and the City of Hanford executed a JPA Agreement creating the Mid-Kings River Groundwater Sustainability Agency ("MKRGSA"), a Joint Powers Authority. MKRGSA assumed its regulatory role as a GSA for all or portions of its Member's jurisdictional territory covering a portion of the subbasin prior to June 30, 2017, and has since performed its required duties including submitting a Groundwater Sustainability Plan ("GSP") to the Department of Water Resources by January 31, 2020.; and

G. On May 30, 2024, the Kings County Water District provided the County of Kings and the City of Hanford 60 days' prior written notice of its termination of membership in the JPA.

H. Having received such notice, the County of Kings and the City of Hanford desire amend and restate the Original Agreement to continue the GSA without the Kings County Water District as a member agency, and to modify the makeup of the Mid-Kings River GSA Board of Directors; and

I. The Members, through the Authority (as defined below), intend to work cooperatively with other GSAs to create a Basin-wide GSP or enter into a Coordination Agreement with other GSAs if multiple GSPs must exist over the Subbasin. The Members desire to continue collecting and organizing data, engaging and retaining expe1ts and consultants, and soliciting feedback from beneficial users, users of groundwater and interested parties within the portion of the Subbasin subject to their jurisdiction, for the purpose of contributing to a Subbasin-wide GSP or for the purpose of creating a GSP for the portion of the Subbasin within their jurisdictional boundaries that will be one of multiple GSPs for the Subbasin that will be coordinated by agreement; and

J. The Members intend by this Agreement to provide for the management and funding commitments reasonably anticipated to be necessary for the above purposes;and

K. The City intends for the County to manage the SGMA implementation, reserving to itself a possible future participatory role in SGMA implementation. Such a future role is separate and distinct from the City's regulatory, land use, and police powers, which are reserved unto the City, and to which the GSA is subject pursuant thereto. The geographic boundaries of the GSA contemplated by the Members are set forth in the map attached hereto as Exhibit "A", which is incorporated herein by this reference; and

L. The Members intend by this Agreement to provide a framework for cooperative efforts for all entities and individuals within the Authority's jurisdictional area and to implement SGMA in the most effective, efficient, fair and reasonable way possible, and at the lowest reasonable cost.

NOW THEREFORE, in consideration the promises, terms, conditions, and covenants contained herein, the Members hereby agree as follows:

ARTICLE I
GENERAL PROVISIONS

Section 1.01. Creation of Authority. Pursuant to California Government Code Section 6500, et. seq., there is hereby created a public entity to be known as the "Mid-Kings River Groundwater Sustainability Agency" ("Authority"), which shall be a public entity separate and apart from the Members, and shall administer this 1st Amendment.

Section 1.02. Purposes. The purposes of this 1st Amendment are:
To create a Joint Powers Authority separate from its Members that will serve as a GSA for a portion of the Subbasin;
To develop, adopt, and implement a GSP in order to implement SGMA's requirements and achieve sustainability goals outlined in SGMA; and
To enter into a Coordination Agreement or similar agreement with other GSAs in order to meet the sustainability requirements outlined in SGMA.

ARTICLE II
POWERS

Section 2.01. Powers. The Authority is hereby authorized, in its own name, to do all acts necessary for the exercise of all powers authorized under SGMA and necessary to satisfy the requirements of SGMA.

Section 2.02. Restrictions on Exercise of Powers. Pursuant to Government Code Section 6509 et. seq., the powers of the Authority shall be exercised and restricted in the same manner as those imposed upon the County.

Section 2.03. Obligations of the Authority. No debt, liability or obligation of the Authority shall constitute a debt, liability or obligation of any of the Members, appointed members of the Board of Directors, or committee members. .

Section 2.04. Water Rights. As provided in Water Code Section 10720.5, groundwater management under this Authority shall be consistent with Section 2 of Article X of the California Constitution and any GSP adopted by the Authority shall not determine or alter surface water rights or groundwater rights under common law or any provision oflaw that determines or grants surface water rights.

Section 2.05. Precedence of Land Use Authority. Nothing in this Agreement or a future groundwater sustainability plan shall be interpreted as superseding the land use authority of County or City, including the County General Plan and the City General Plan (Wat.Code§ 10726.8(f).)

ARTICLE III
GOVERNING BODY

Section 3.01. Governing Board. The Authority shall be governed by a Board composed of Directors ("Board"). All voting power of the Authority shall reside in the Board.
The Directors shall be as follows:
The five (5) elected members of the governing bodyof the County;
One (1) elected member of the governing body of the City. Such member shall serve at the pleasure of the City and may be removed or replaced by the City at any time.
The office of a Director who is no longer an elected member of the governing body of his/her appointing agency shall be deemed automatically vacant.

Section 3.02. Meetings of the Board. The Board shall call and conduct its meetings in accordance with Government Code Section 54950 et. seq.

Section 3.03. Minutes. The Secretary shall cause to be kept minutes of the meetings of the Board and shall, as soon as possible after each meeting, cause a copy of the minutes to be forwarded to each Director and to each of the Members.

Section 3.04. Voting. Each Director position on the Board shall have one vote.

Section 3.05. Quorum; Required Votes; Approval. A quorum of the Board for convening of any meeting shall consist of a majority of all Director positions. A quorum of the Board must be present at the time of any vote on any matter before the Board. An affirmative vote of at least a majority of the Director positions present in a quorum of the Board, shall be required for any action of the Board. Notwithstanding the foregoing, approval of certain types of matters shall require the approval of two-thirds (2/3rds) of all Director positions (meaning at least four (4) votes to approve, which would proportionately increase as members are added, if any). The items requiring approval of two-thirds (2/3rds) of all Director positions are: adoption and amendment of budgets, assessments, litigation, hiring or termination of the chief executive officer, adoption or amendment of a GSP, the addition of new Members, the termination or removal of Members, execution and amendment of a Coordinating Agreement with other GSAs, and amendment of this Agreement.

Section 3.06. Bylaws. The Board may adopt bylaws and governing regulations consistent with this Agreement, which may be amended from time-to-time, for the conduct of its meetings and as may be necessary for the purposes hereof.

Section 3.07. Terms of Office. The term of office for each Director shall be consistent with their term on the Board of Supervisors or City Council.

ARTICLE IV
COMMITTEES

Section 4.01. Committee Formation. Committees shall be formed by the Board in order to advise the Board on matters that fall within the scope of the paiticular committee's assignment. Committees may be standing committees or ad hoc committees. The Board shall appoint one (1) Director to be a votingmember of and the Chair of each committee. Committees shall meet as often as directed by the Board or, if no such direction is given, as often as necessary, as determined by the Chair of the committee. Committees will be established and dissolved at the discretion of the Board.

ARTICLEV
OFFICERS AND EMPLOYEES

Section 5.01. Chair and Vice-Chair. During the Board's first regular meeting of each year, the Board shall elect a Chair and a Vice-Chair from among the Directors. The Chair and the Vice-Chair shall serve at the pleasure of the Board and shall perform the duties normally required of said offices.
The Chair shall: (1) preside at and conduct each meeting of the Board, (2) represent the Board as directed by the Board, (3) be an ex-officio member of each committee established by the Board, and (4) perform such other duties as may be imposed by said Board;
The Vice-Chair shall act and perform all of the Chair's duties in the absence of the Chair; and The Chair or Vice-Chair may sign all contracts and agreements as approved by the Board.

Section 5.02. Secretary. The Board shall appoint a Secretary from among the employees of the Authority, the employees of the Members, or if no such employees exist, a consultant. The Secretary shall serve at the pleasure of the Board. The Secretary shall act on behalf of the Authority and perform such other duties as may be imposed by the Board. The Secretary may sign agreements for the Authority when authorized by the Board.

Section 5.03. Treasurer and Auditor.

The Treasurer is designated as the fiscal agent and depositary for the Authority. The initial Treasurer for the Authority following this amendment shall be the Director of Finance of the County, or designee thereof. The Authority shall reimburse the County for all contributions and expenses incurred by the County pursuant to the County Director of Finance's role as Treasurer, or for any other administrative assistance provided to the Authority by the County. The Authority and the County may enter into a separate agreement regarding reimbursement of the County for any and all contributions and expenses incurred by the County consistent with this Section.

Thereafter, the Treasurer shall be appointed by the Board. The Treasurer shall be the depositary and have custody of all money of the Authority, from whatever source, subject to the applicable provisions of any indenture or resolution providing for a trustee or other fiscal agent. All funds of the Authority shall be held in the joint operating fund, established later in this Section, or in such other separate accounts as may be necessary, in the name of the Authority and not commingled with the funds of any Member or any other person or entity. Full books and accounts shall be maintained for the Authority in accordance with practices established by, or consistent with, those utilized by the Controller of the State of California for public entities. The books and records of the Authority shall be open to inspection by the Members at all reasonable times, and by bondholders and lenders to the extent provided by resolution or indenture.

The Authority shall have the power to establish a joint operating fund. The fund shall be used to pay all administrative, operating and other expenses incurred by the Authority, and will initially be funded by Member contributions as set forth in the initial and annual operating budgets. The Treasurer shall draw checks or warrants or make payments by other means for claims or disbursements not within an applicable budget only upon the approval of the Board and in accordance with Board directions and authorizations concerning authorized account signatories. The Authority's Members may invest any money in the treasury that is not required for its immediate necessities in the same

manner, and upon the same conditions, as any local agency may do pursuant to Government Code Section 53635.

There shall be strict accountability of all funds, and the Treasurer designated by the Board shall report any and all receipts and disbursements to the Board with such frequency as shall reasonably be required by the Board. The Authority will utilize the services of an outside independent certified public accountant ("Auditor") to make an annual audit of the accounts and records of the Authority as required by Government Code Section 6505, unless the Board, by unanimous vote, elect to conduct the audit for a two (2) year period. In each case, the minimum requirements of the audit shall be those prescribed by the State Controller for special districts pursuant to Government Code Section 26909, and shall conform to generally accepted accounting principles. The Auditor selected by the Authority shall be formally designated by a resolution adopted by majority vote of the quorum present stating the effective date of the appointment and the term of the appointment.

Section 5.04. Officers in Charge of Records; Funds; and Accounts. Pursuant to Government Code Section 6505.1, the Treasurer shall have charge of, handle and have access to all accounts, funds and money of the Authority and all records of the Authority relating thereto; and the Secretary shall have charge of, handle and have access to all other records of the Authority.

Section 5.05. Employees and Consultants. The Board may hire employees and consultants, including without limitation managers, engineers, field staff: accountants and attorneys, to provide services and leadership to the Authority to accomplish the purposes of the Authority.

ARTICLE VI

ACCOUNTS AND REPORTS; FUNDS

Section 6.01. Accounts and Reports. The Treasurer shall establish and maintain such funds and accounts as may be required by good accounting practice. The books and records of the Authority shall be open to inspection at all reasonable times by the public and representatives of the Members. The Auditor, within one hundred twenty (120) days after the close of each Fiscal Year, shall give a complete written report of all financial activities for such Fiscal Year to the Members.

Section 6.02. Annual Budget. The Board shall annually adopt a budget for the Authority. The Treasurer shall disburse funds as set forth in the adopted budget. Members shall make contributions which shall be included in the budget adopted by the Board. A Director's affirmative vote to approve a budget does not constitute consent to finance or otherwise participate in any project or projects within that budget.

Section 6.03. Intention for Reimbursement for Expenditures from Alternative Funds. It is the intention of the Members that the advancement of monies by any Members for expenses of the operational needs of the Authority shall be reimbursed from the proceeds of grants or other funds, if alternative funds are obtained and such reimbursement is allowed bylaw. Additionally, in accordance with Government Code Section 6512.1, the Board may direct repayment or return to the Members of all or part of the contributions made by the Members, upon such terms as may be consistent with any indebtedness incurred by the Authority. Unless otherwise prohibited by the alternative funding source, said alternative source's funds will be disbursed before local funds for covered Authority obligations.

As of the date of this First Amendment, the GSA has an existing debt to former member Kings County Water District of approximately $532,350 and a debt to the City of Hanford of approximately $150,000. These funds are expected to be paid back as practicable following receipt of grant funds and/or a successful Proposition 218 election passed by Authority landowners. It is anticipated that a portion of the Proposition 218 funds will be used to pay for ongoing GSA expenses and a pmiion to repay the existing debts of the Mid-Kings River GSA so that those existing debts can be repaid in a time period close to within 4 years of the successful Proposition 218 election being passed by Authority landowners.

Section 6.04. Assessment of Members. The Board may vote to assess Members for a share of costs incurred by the Authority or which are anticipated to be incurred by the Authority based on methods described below. Assessments paid by Members shall be treated as loans to the Authority.

It is the intent of the Members to financially support the Authority only until the Authority can financially sustain itself by developing a reliable funding stream through assessments, water charges or other potential fees. Once the Authority becomes financially self-sustaining, the Members will be reimbursed for the initial start-up funding provided to the Authority. Reimbursement will occur such that the oldest contributions will be reimbursed before newer contributions.

The method of cost allocation among the Members is envisioned to evolve over time. However, from the effective date of the JPA Agreement to the effective date of its First Amendment, cost has been split 75% to the District and 25% to the City. As a starting place following this First Amendment, it has been agreed that for the GSA's next fiscal year beginning in January 2025, costs will be split 89% to the County and 11% to the City, which allocation is partially based on acres of land within each agency's coverage area. Cost sharing for subsequent budgets will be negotiated in good faith at the time when those budgets are considered.

All assessments shall be paid by Members within sixty (60) days of the approval of the assessment by the Board.

ARTICLE VII

MEMBERSHIP

Section 7.01. Other Members. The Board may vote to approve other entities to be Members of the Authority, as well as to appoint representatives of new Members serving as Directors and alternate Directors on the Board.

Section 7.02. Removal of Member. The Board may vote to remove any Member as a member of the Authority in accordance with Section 3.05.

ARTICLE VIII

TERM; WITHDRAWAL; TERMINATION

Section 8.01. Term. The Authority shall continue in existence until dissolved by the Members. Dissolution of the Authority will occur only by unanimous written consent of all Members.

Section 8.02. Withdrawal of Member/Territory. A Member may terminate its membership in the Authority at any time, or, alternatively, authorize the withdrawal of land within its service area or political boundary, by giving sixty (60) days' prior written notice of the withdrawal to the Authority. A withdrawing Member shall be entitled to: (i) all data, information, and work product gathered and developed by the Authority and the Authority's contractors and consultants through the end of the then-current fiscal year or the effective date of the Member's withdrawal, whichever is later; and (ii) an interest in the Authority's assets in proportion to the withdrawing Member's past unreimbursed contributions and its share of obligations and liabilities for which it will remain responsible following withdrawal. Any such withdrawal shall continue to obligate the Member to pay its share of all debts (e.g. budgeted funding commitments within the fiscal year, indebtedness related to asset acquisition, regulatory fees), liabilities, and obligations incurred or accrued prior to the effective date of such withdrawal.

Should a Member choose to withdraw from the Authority or to authorize the withdrawal of territory within its service area or political boundary in accordance with the terms of this Agreement, that Member expressly retains the right to serve as the GSA or, alternatively, will ensure GSA coverage by another entity, in coordination with Department of Water Resources and subject to the requirements of the Act, for that portion of the Subbasin underlying its jurisdictional boundaries or service area.

Section 8.03. Disposition of Assets. Upon termination of the Authority, any assets shall be returned to the Members in the same proportion said Members have funded such reserves or surplus, in accordance with California Government Code § 6512.

ARTICLE IX

MISCELLANEOUS PROVISIONS

Section 9.01. Amendments. This Agreement may be amended by the Board at any time, or from time to time. No change, amendment or modification of this Agreement shall be valid unless the same be in writing and signed by the Members in accordance with Section 3.05.

Section 9.02. Claims. All claims against the Authority, including, but not limited to, claims by public officers and employees for fees, salaries, wages, mileage, or any other expenses, shall be filed within the time and in the manner specified in Chapter 2 (commencing with Section 910) of Part 3, Division 3.6 of Title I of the Government Code, which describes the appropriate content of a claim.

Section 9.03. Indemnification. The Authority shall indemnify, defend, and save harmless the Members, their officers, agents, and employees, and appointed members of the Board of Directors, their officers, agents, and employees, and committee members, their officers, agents, and employees, from and against any and all claims and losses whatsoever, occurring or resulting to persons, firms, or corporations furnishing or supplying work, services, materials or supplies to the Authority in connection with the performance of this Agreement, and, except as expressly provided by law, from any and all claims and losses accrning or resulting to any persons, firm or corporation, for damage, injury, or death arising out of or connected with the Authority's perf01mance of its obligations under this Agreement. Nothing herein shall limit the right of the Authority to purchase insurance or to create a self-insurance mechanism to provide coverage for the foregoing indemnity.

Section 9.04. Insurance. The Authority shall obtain insurance for all Members, appointed members, and committee members, including but not limited to directors' and officers' liability insurance and general liability insurance containing policy limits in such amounts as the Board of Directors shall determine will be necessary toadequately insureagainst the risks of liability that may be incurred by the Authority.

Section 9.05. Severability. If any provision of this Agreement is determined to be invalid or unenforceable, the remaining provisions will remain in force and unaffected to the fullest extent permitted by law and regulation.

Section 9.06. Sole and Only Agreement. This Agreement supersedes any and all other agreements, either oral or in writing, between the parties hereto with respect to the matters set forth herein and contains all of the covenants and agreements between the parties regarding said matters. Each party to this Agreement acknowledges that no representations, inducements, promises or agreements, orally or in writing, have been made by any party or anyone acting on behalf of any party which are not embodied in this Agreement and no other agreement, statement or promise shall be valid or binding.

Section 9.07. Waivers. Waiver of a breach or default under this Agreement shall not constitute a continuing waiver of a subsequent breach of the same or any other provision under this Agreement.

Section 9.08. Notices. All notices required or permitted by this amended JPA or applicable law shall be in writing and may be delivered in person (by hand or by courier) or may be sent by regular, certified, or registered mail or U.S. Postal Service Express Mail, with postage prepaid, or by facsimile transmission, or by electronic transmission (email) and shall be deemed sufficiently given if served in a manner specified in this Section 5. The addresses and addressees noted below are that Party's designated address and addressee for delivery or mailing of notices.

To City of Hanford:
City of Hanford City Manager
315 North Douty Street Hanford, CA 93230
Telephone: 559-585-2515

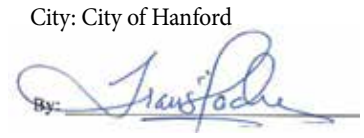
To County of Kings:
County of Kings
Community Development Director 1400 W. Lacey Blvd., Bdg. #6
Hanford, CA 93230
Telephone: 559-852-2680

With copy to:
County Counsel
1400 W. Lacey Blvd., Bdg. #4
Hanford, CA 93230
Telephone: 559-852-2445

Any Party may, by written notice to the others, specify a different address for notice. Any notice sent by registered or certified mail, return receipt requested, shall be deemed given on the date ofdelivery shownon the receipt card, or if no delivery date is shown, three (3) days after the postmark date. If sent by regular mail, the notice shall be deemed given forty-eight (48) hours after it is addressed as required in this section and mailed with postage prepaid. Notices delivered by United States Express Mail or overnight courier that guarantee next day delivery shall be deemed given twenty-four (24) hours after delivery to the Postal Service or courier. Notices transmitted by facsimile transmission or similar means (including email) shall be deemed delivered upon telephone or similar confirmation of delivery (confirmation report from fax machine is sufficient), provided a copy is also delivered via personal delivery or mail. If notice is received after 4:00 p.m. or on a Saturday, Sunday or legal holiday, it shall be deemed received on the next business day.

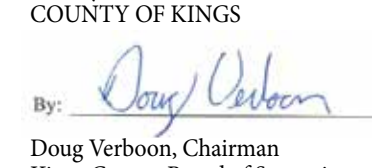
IN WITNESS WHEREOF, the Members hereto execute this Agreement to be effective on the date first written above.

City: City of Hanford

By: 

Travis Paden, Mayor

County:
COUNTY OF KINGS

By: 

Doug Verboon, Chairman
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Ag Commissioner's Compliance Report

Jimmy Hook, Agricultural Commissioner/Sealer

Statewide Notification of Agricultural Use of Restricted Materials

Contributed by Janet Eckles

In 2021, The Department of Pesticide Regulation (DPR) began the development of a statewide pesticide application system. This system was aimed at providing the public with information prior to the use of restricted material pesticide applications. In 2022, Riverside, Santa Cruz, Stanislaus, and Ventura Counties participated in a pilot program for this notification system and in 2023, DPR conducted an initial public comment period and hosted three public hearings. With the information they gathered they have amended their initial proposal.

This regulatory action affects the Notice of Intent (NOI) submission requirements for growers and pest control businesses submitting them. The current submittal of NOIs are accepted electronically, on paper, or over the phone. The first change will now require all agricultural use NOIs to be electronically submitted to the County Agricultural Commissioner (CAC) via www.CalAgPermits.org, unless the CAC grants an exemption from the electronic submission requirement upon finding an undue hardship. This is also how the NOIs for soil fumigations are to be submitted with a minimum of 48 hours before the intended start of the application.

All non-soil fumigation NOIs to be submitted at least 24 hours prior to the start of an application, which has not changed, however, this means that if you submit your NOI at 10 am on a Tuesday the soonest start time will be at 10 am the following day, unless there is a waiver requested. The waiver procedure will be changing as well.

DPR's notification system is called "SprayDays California". This website will provide information to the public about what to do if exposed to a pesticide, common symptoms of exposure and the best practices for working or living near pesticide applications. It also provides users with a searchable online map that allows them to anonymously view information on upcoming pesticide applications. Users will also be able to sign up to receive that information automatically via email or text message 24 to 48 hours before a planned application.

This notification system is aimed at Restricted Material use and not for everyday applications of non-restricted pesticides.

If you have any questions, please contact the Kings County Agricultural Commissioner's Office at 559-852-2830.

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Excelsior-Kings River RCD Healthy Soils Grant Program

EKRCD will cost-share projects to improve on-farm soil health and on-farm composting.

OBJECTIVE

Cost share healthy soils products including but not limited to: compost applications, cover-cropping, mulching and whole orchard recycling.

SERVICE AREA

Portions of Kings, Tulare, and Fresno Counties

**Members of the Socially Disadvantaged Farmers and Ranchers (SDFR) Community are encouraged to apply and may qualify for additional funding.*

EXCELSIOR/KINGS RIVER
Resource Conservation District

APPLICATION TIMELINE
July 1–August 31, 2024

APPLY ONLINE:
ekrcd.org

APPLY IN-PERSON:
870 Greenfield Ave.,
Hanford, CA 93220

FOR MORE INFORMATION:
info@ekrcd.org
559-309-4030

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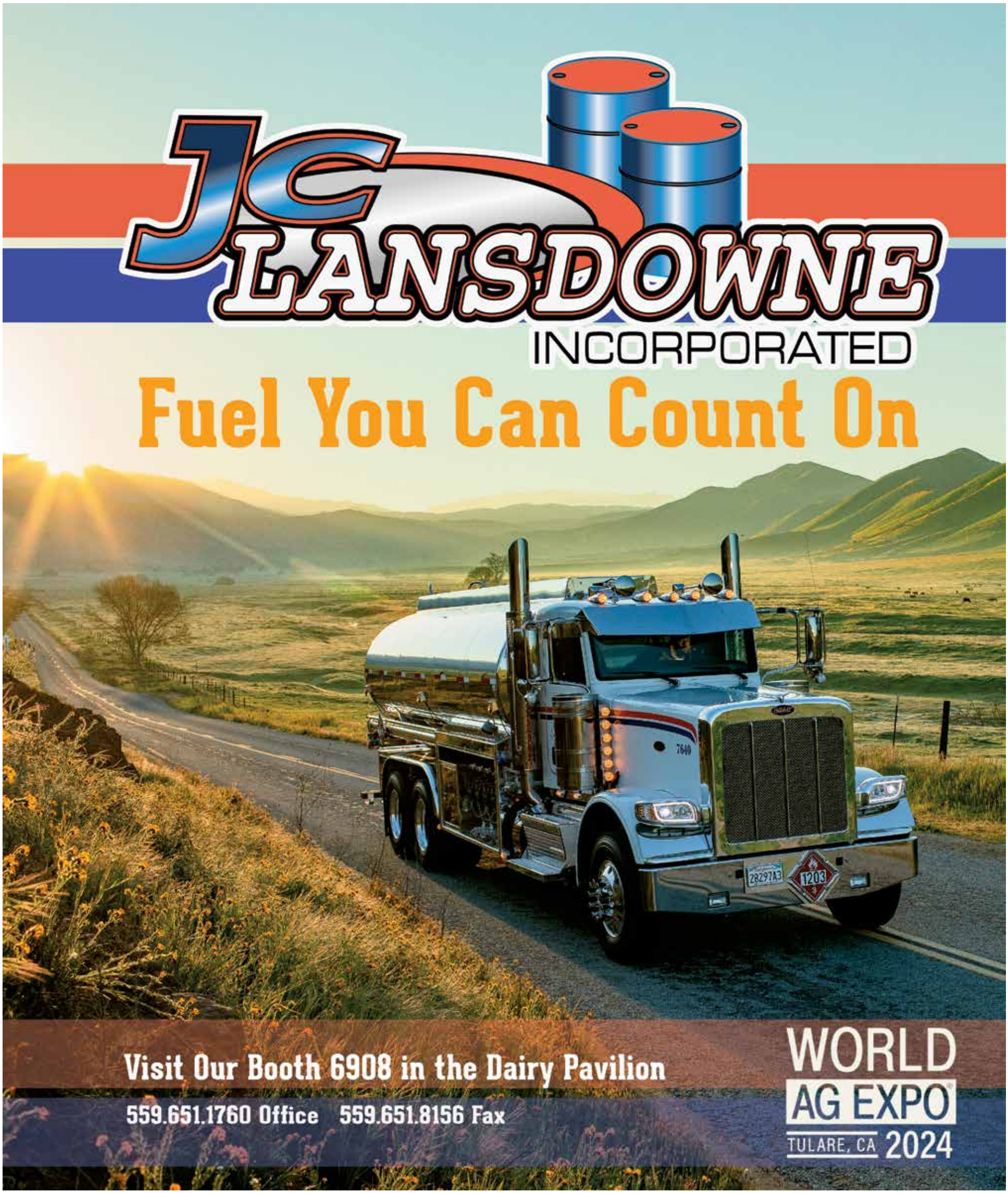
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Coming up: KCFB's 10th Annual Harvest Classic Golf Tournament

By Breanna Larman

Breanna Larman

On Monday, October 28th Kings County Farm Bureau will hold our 10th annual Harvest Classic golf tournament at the Kings Country Club. Our 2024 tournament is open to the first 136 paid participants. This event sells out every year so secure your spot today! Players will receive a gift bag, coffee, breakfast, two free drink tickets, lunch provided by the Country Club, and are welcome to attend our open bar cocktail hour following the tournament. There will be additional games to play on the course such as longest drive, closet to the pin, blackjack, and guess your drive. A team game package is available for purchase. We are looking forward to another great tournament!

We would like to thank JC Lansdowne for being our presenting sponsor again this year. If you are also interested in sponsoring the tournament or participating as a player please contact Breanna at the KCFB office.

Participate in the Broadband Equity, Access, and Deployment (BEAD) Program Challenge Process

HANFORD, CA (July 15, 2024) – High-speed, high-quality internet service is essential for participation in modern life. However, many rural communities lack the proper level of service to adequately participate in today's economy. To address this service inequity, the California Public Utilities Commission (CPUC) is collecting broadband consumer data information directly from users in an attempt to identify gaps in coverage, and shore up access and service. Kings County residents and business owners are encouraged to participate in this data collection to address local broadband inequities.

The Broadband Equity, Access, and Deployment (BEAD) Program is being implemented in California by the CPUC. Nationally, BEAD provides $42.45 billion to expand high-speed internet access by funding planning, infrastructure deployment and adoption programs in all 50 states, Washington D.C., Puerto Rico, the U.S. Virgin Islands, Guam, American Samoa, and the Commonwealth of the Northern Mariana Islands. California has been allocated approximately $1.86 billion under BEAD based on the federal government's calculation of California's share of unserved locations nationally.

The State's 30-day BEAD Challenge Process began on Monday July 8, 2024. The State recently released a map indicating the served status of locations throughout California, including locally in Kings County. The 30-day BEAD Challenge Process is your opportunity to submit a response to that information if you regularly experience broadband speeds slower than the status indicated in the State's data. During this 30-day window, permissible challengers be able to challenge the existing BEAD Challenge Process map by submitting evidence through the Portal when specific locations may not be accurately represented as unserved, underserved, or served. At the end of the Challenge Process (subject to NTIA approval), a final map of locations eligible for BEAD funding will be published.

Every Internet service customer should verify that their Internet service served status is correctly indicated on the challenge process map. Details on the BEAD Challenge Process can be accessed at https://register.challenge.cpuc.ca.gov/individual-challengers.

"BEAD Program" continued on page 12

"BEAD Program" continued from page 11

Visit https://register.challenge.cpuc.ca.gov/register/bead/map to view the map and search window in the upper-right section of the page. A pink dot on your location indicates that the State already has identified your location as unserved and eligible for a BEAD-funded project, and you won't need to submit a challenge. A blue dot indicates that your location is underserved and a gray dot indicates that your location is served.

Internet Speed Service Categories (for reference):

- Unserved: less than 25Mbps download or 3Mbps upload.
- Underserved: at least 25mbps download and 3Mbps upload, and less than 100Mbps download or 20Mbps upload.
- Served: at least 100Mbps download and at least 20Mbps upload.

What you should do between now and August 6 if you need to submit a challenge:

- Start the challenge process at the California BEAD Consumer Challenge Page.
- Take at least 3 Internet speed tests, each from a different day, and save the results by clicking Download Test Results. You can use the speed test within the challenge process for all of your tests.
- Click "Remind Me" below the speed-test Thank You message and enter your email address to be reminded to take additional speed tests.
- While the speed test is running, you will have the option to upload evidence of your Internet service subscription. This evidence could be a statement, invoice, receipt or screenshot of the online account dashboard. Useful information to have in the evidence to upload would be the service speeds and the connection technology (cable, fiber, etc.).

For technical assistance with the portal, please contact **cahelpdesk@ready.net.** Additionally, The CPUC will hold a series of office hours for live questions on the BEAD Challenge Process. Dates and times will be posted on the BEAD Events page for registration once available. The CPUC's BEAD Frequently Asked Questions can be accessed at https://www.cpuc.ca.gov.

Kings County Rural Crime Report

Contributed by Detective Dakotah Fausnett

Throughout the month of July, the Kings County Rural Crimes Task Force has been busy investigating several copper wire thefts, burglaries, equipment thefts and fuel thefts. We recently were able to track down and arrest a suspect that had burglarized several shops in Kings County and Fresno County. Copper wire theft is on the rise. We encourage members to use aluminum wiring in their well pumps when possible. Thieves recognize that aluminum wiring has no significant monetary value to them and installing it in your well pumps can help deter theft. We work side by side with the recycle centers and review the recycled material each week to help stop copper wire theft.

It is imperative that if anyone knows of or hears of any buying or selling of obviously stolen equipment, call the Sheriff's Office. Crime prevention is our number one priority within the task force. We encourage members to install security cameras, alarm systems, lighting and fencing to help deter thefts in the rural areas of the county. If you have any questions, feel free to call any of our unit members at any time.

Detective Fausnett **(559) 639-8704**
Detective Thomas **(559) 530-1701**
Detective Coghlan **(559) 362-3078**
DA Investigator Ward **(559) 309-6367**

"Heat Illness" continued from page 1

Information Provided by CalOSHA

body's inability to cope with a particular heat load. Types of heat illness include heat cramps, heat exhaustion, heat syncope, and heat stroke, which can lead to death. Taking steps to prevent heat illness in indoor workplaces not only reduces health risks, but also makes the workplace environment comfortable, which makes it easier for employees to work more efficiently and increases overall productivity.

What must employers do?

Access to clean drinking water: Employers are required to provide access to potable water that is fresh, suitably cool, and free of charge. It must be located as close as practicable to the work area and cooling area. If an employer does not provide plumbed water, they are required to provide at least one quart per hour per employee per shift. Employers must encourage frequent water consumption.

Cool-down areas and rest periods: Employers must provide access to at least one cool-down area which must be maintained at a temperature below 82°F, blocked from direct sunlight, shielded from other high-radiant heat sources, large enough to accommodate the number of employees on rest breaks, and as close as practicable to the work area. They must allow employees who ask for a cool-down rest period to take one. In addition, employers must encourage employees to take preventative cool-down rest periods and monitor employees taking such rest periods for symptoms of heat-related illness. If symptoms persist, they may not be ordered back to work.

Assessing and measuring heat: Employers must measure the temperature and heat index and record whichever is greater whenever the temperature or heat index reaches 87°F (or temperature reaches 82°F for employees working in clothing that restricts heat removal or high radiant heat areas). This is an important step to ensure that employers know when to implement control measures to keep employees safe.

Emergency response procedures: Employers must provide first aid or emergency response to any workers showing heat illness signs or symptoms, including contacting emergency medical services.

Acclimatization: Employers must closely observe new employees and newly assigned employees working in hot areas during a 14-day acclimatization period, as well as all employees working during a heat wave where no effective engineering controls are in use.

Training: Employers need to provide training to both employees and supervisors. Required topics include:

- Environmental and personal risk factors for heat illness.
- The employer's procedures for complying with the regulation.
- The importance of frequent water consumption.
- The importance and methods of acclimatization.
- Signs and symptoms of the different types of heat illness.
- The importance of employees immediately reporting to the employer signs and symptoms of heat illness in themselves or co-workers.
- The employer's procedures for responding to signs and symptoms of heat illness, such as first aid.
- Emergency response procedures, including contacting emergency medical services with clear directions to the worksite.
- Before supervising employees, the supervisor must be trained in all the information listed above and how to monitor and respond to hot weather reports, if the work area is affected by outdoor temperatures.

Controls: Employers are required to implement engineering and administrative controls and personal heat-protective equipment to minimize the risk of heat illness when:

- Temperature or heat index is 87°F or higher.
- Temperature is 82°F or higher and employees are either wearing clothing that restricts heat removal or working in an area with high radiant heat.

More information on controls is given in the "Controls" section below.

Written plan: Establish, implement, and maintain an effective written Indoor Heat Illness Prevention Plan that includes procedures for providing drinking water, cool-down areas, preventative rest periods, close observation during acclimatization, assessment and measurement of heat, training, timely emergency response, and feasible control measures.

Controls

Employers must start with feasible engineering controls, then add administrative controls if those are not enough to reduce the temperature and heat index to below 87°F (or temperature to below 82°F for employees working in clothing that restricts heat removal or high radiant heat areas). Employers have options when implementing control measures to protect their workers against heat illness and to comply with the standard:

Engineering controls: These are controls that remove or reduce heat or create a barrier between the employee and the heat source. Examples include:

- Increased natural ventilation, such as open windows and doors when the outdoor temperature or heat index is lower than the indoor temperature and heat index.
- Cooling fans or air conditioning.
- Local exhaust ventilation at points of high heat production or moisture (such as exhaust hoods in laundry rooms).
- Reflective shields to block or reduce radiant heat.
- Insulating or isolating heat sources from employees, or isolating employees from heat sources.
- Elimination of steam leaks.
- Cooled seats or benches.
- Evaporative coolers.

Administrative controls: These controls are methods that limit exposure to heat by adjusting work procedures, practices, or schedules.

Administrative controls should be used once all feasible engineering controls have been implemented.

- Modify work schedules and activities to times of the day when the temperature is cooler or schedule shorter shifts, especially during heat waves. For newly hired workers and unacclimatized existing workers, gradually increase shift length over the first one to two weeks.
- Require mandatory rest breaks in a cooler environment, such as a shady location or an air-conditioned building. The duration of the rest breaks should increase as heat stress rises.
- Schedule work at cooler periods or times of day, such as early morning or late afternoon.
- Rotate job functions among workers to help minimize exertion and heat exposure. If workers must be in proximity to heat sources, mark them clearly, so they are aware of the hazards.
- Require employees to work in pairs or groups during extreme heat so they can monitor each other for signs of heat illness.

Personal heat-protective equipment: If feasible engineering controls do not decrease the temperature enough and administrative controls do not minimize the risk of heat illness, special cooling devices that the employees wear can protect them in hot environments:

- Water- or air-cooled garments, cooling vests, jackets, and neck wraps. The cooling source can be reusable ice packs or cooled air connected to an external source.
- Supplied-air personal cooling systems.
- Insulated suits.
- Heat-reflective clothing.
- Infrared reflecting face shields.

Workers should be aware that the use of certain personal protective equipment for other hazards, such as respirators, impermeable clothing, and head coverings, can increase the risk of heat- related illness.

Signs of heat stress

The longer a person goes without assistance in excessive heat, the more likely they are to become seriously ill. Some symptoms of heat illness include the following:

- Headache
- Fatigue
- Dizziness
- Confusion
- Muscle pain and spasms
- Elevated heart rate
- Heavy sweating
- Hot/dry skin
- Nausea/vomiting
- Fainting/unconsciousness

Certain medical conditions are risk factors of heat stress and related heat illnesses. Employees with heart disease or high blood pressure and those taking certain medications should take extra precautions with their heat exposure.

"Heat wave" means any day in which the predicted high outdoor temperature for the day will be at least 80°F and at least 10°F greater than the average high daily outdoor temperature for the preceding five days.

"Acclimatization" means temporary adaptation of the body to work in the heat that occurs gradually when a person is exposed to it. Acclimatization peaks in most people within 4 to 14 days of regular work for at least 2 hours per day in the heat.

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